

24NNCV03495 24NNCV03495

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 24NNCV03495 Hearing Date: July 17, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION TO COMPEL DISCOVERY RESPONSES

Hearing Date: 07/17/26

CASE NO./NAME: 24NNCV03495

Isagulyan v. Ralphs Grocery Company

Moving Party: Defendant

Ralphs Grocery Company

Responding Party: N/A

Notice: Sufficient

Ruling:

GRANT

NOTICE

The

Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative

ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

On August 12, 2024, Plaintiff Joseph Isagulyan ("Plaintiff") filed this action against Defendant Ralphs Grocery Company ("Defendant") and Does 1 to 20 for injuries sustained in a slip and fall incident at Defendant's property. The Complaint alleges a single cause of action for premises liability.

On July 16, 2025, Defendant served Form Interrogatories, Set One, Special Interrogatories, Set One, and Requests for Production of Documents, Set One on Plaintiff. (Woodruff Decl., ¶ 5.) Having received no responses to their discovery requests, Defendant proceeded to file the instant motions compelling Plaintiff to provide responses. Defendant also requests monetary sanctions in the amount of \$1,410.00 per motion.

LEGAL

STANDARD

Where a party fails to serve timely responses to discovery requests, the court may make an order compelling responses. (Code Civ. Proc., §§ 2030.290, 2031.300; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403.) A party that fails to serve timely responses waives any objections to the request, including ones based on privilege or the protection of attorney work product. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a).) Unlike a motion to compel further responses, a motion to compel responses is not subject to a 45-day time limit and the propounding party has no meet and confer obligations. (*Sinaiko Healthcare Consulting, Inc.*, supra, 148 Cal.App.4th at p. 404.)

If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the party making the demand

may move for an order compelling response to the demand. (Code Civ. Proc., § 2031.300, subd. (b).) In addition, the failure of the responding party to serve timely responses “waives any objection to the demand, including one based on privilege or on the protection for work product . . .” (Code Civ. Proc., § 2031.300, subd. (a).)

DISCUSSION

A.

Motions to Compel

Defendant served

Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One on July 16, 2025. (Woodruff Decl., ¶ 5.) Responses were due August 19, 2025. (Woodruff Decl., ¶ 6.) Plaintiff obtained an extension to respond by September 1, 2025. (Woodruff Decl., ¶ 7.) Defendant sent a meet and confer letter on May 1, 2026, which Plaintiff has not responded to. (Woodruff Decl., ¶ 8.) As of the filing of the instant motions on May 20, 2026, Plaintiff has not served responses to Defendant’s discovery requests. (Woodruff Decl., ¶ 10.)

As Defendant

properly served the discovery requests, and Plaintiff failed to serve responses, the Court finds Defendant entitled to orders directing Plaintiff to provide responses to Defendant’s discovery requests.

Accordingly,

Defendant’s motions to compel responses to Form Interrogatories, Set One, Special Interrogatories, Set One, and Requests for Production of Documents, Set One, are GRANTED.

B.

Monetary Sanctions

Defendant

requests monetary sanctions in the amount of \$1,410.00 per motion, consisting of two hours preparing the motion, an anticipated two hours to review Plaintiff’s opposition and prepare a reply, one hour preparing for the hearing, and one hour attending the hearing at an hourly rate of \$225.00, as well as a

\$60.00 filing fee. (Woodruff Decl., ¶¶
12-13.)

Where the court grants a motion to compel responses, sanctions shall be imposed against the party who unsuccessfully makes or opposes a motion to compel, unless the party acted with substantial justification or the sanction would otherwise be unjust. (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).)

The Court finds two hours preparing each motion excessive, as the motions are straightforward and similar to each other. Additionally, no opposition has been filed for any of the three motions. Finally, the Court finds two hours to prepare for and attend the hearing to be excessive for motions of this scope. The Court reduces the sanctions request to a reasonable total amount of \$855.00, consisting of two hours for preparing all three motions and one hour for preparing for and attending the hearing at the hourly rate of \$225.00, plus a \$60.00 filing fee for each motion.

Defendant's request for sanctions is GRANTED in the total amount of \$855.00, against Plaintiff and counsel, jointly and severally.

CONCLUSION AND ORDER

Defendant's motions to compel responses to Form Interrogatories, Set One, Special Interrogatories, Set One, and Requests for Production, Set One are GRANTED.

Defendant's request for monetary sanction is GRANTED in the total amount of \$855.00, against Plaintiff and counsel, jointly and severally.

MOVING PARTY shall provide notice of this order.